

23STCV01650 23STCV01650

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DEMURRER TO FIRST

AMENDED COMPLAINT

Motion filed on February 17, 2026.

MOVING PARTY: City of Los Angeles (City)

RESPONDING PARTY: Armando Chavez (Plaintiff)

NOTICE: Ok.

RELIEF REQUESTED: City seeks an order sustaining its demurrer to the first cause of action for government liability without leave to amend.

RULING: Overruled.

BACKGROUND

On January 25, 2023, Plaintiff Armando Chavez (Plaintiff) filed the Complaint alleging causes of action for (1) government liability, (2) negligence, and (3) premises liability. On January 5, 2026, the Court granted

Plaintiff leave to file a First Amended Complaint. Plaintiff filed the First Amended Complaint (FAC) on January 6, 2026. On February 9, 2026, Plaintiff dismissed the second and third causes of action. The first cause of action for government liability under Government Code sections 830 and 835 remains. On February 17, 2026, Defendant City of Los Angeles (Defendant) filed the instant Demurrer and Request for Judicial Notice. Plaintiff filed an Opposition on April 10, 2026. Defendant filed a Reply on September 8, 2026.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the Court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

REQUEST FOR JUDICIAL NOTICE

Defendant's Request for Judicial Notice of Exhibits A through I is granted. The Court takes notice of the filing and contents of the government claim and court records, Plaintiff's prior deposition testimony and interrogatory responses for the limited purpose of evaluating the asserted inconsistency with the FAC, and the geographic information reflected in the maps. The Court does not take judicial notice of the truth of disputed factual assertions contained in those materials. (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 368, fn. 1; Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604-605; Evid. Code, § 452, subds. (c), (d), (h).)

DISCUSSION

Government Claims Act

Defendant demurs to the first cause of action under Code of Civil Procedure section 430.10, subdivision (e), arguing that it fails to state facts sufficient to constitute a cause of action because the FAC alleges a

different accident location than the location identified in Plaintiff's government claim. Defendant contends that the discrepancy means Plaintiff did not substantially comply with Government Code sections 910 and 945.4. Specifically, Defendant argues that "a pothole at one intersection is a materially different dangerous condition than a pothole at another intersection, requiring different maintenance records, different notice analysis, and different causation proof." (Reply, p. 2.) Defendant further argues that the incorrect location deprived it of an opportunity to investigate the claim. (Demurrer, p. 15.)

Government Code section 910, subdivision (c), requires a claim to state "[t]he date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted." The purpose of the claim statutes is "to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation." (*Stockett v. Association of California Water Agencies Joint Powers Insurance Authority* (2004) 34 Cal.4th 441, 446.) A claim substantially complies when it contains sufficient information to permit that investigation. (*Johnson v. City of Oakland* (1961) 188 Cal.App.2d 181, 183.) "When it falls short of that test, it is insufficient." (*Ibid.*) Because the purpose is notice sufficient to investigate and evaluate the claim, not elimination of meritorious actions, the claims statute should not be applied to "snare the unwary where its purpose has been satisfied." (*Stockett*, *supra*, 34 Cal.4th at p. 446.)

"California courts have taken a liberal view of claims statutes where a reasonable attempt has been made to comply with the law in good faith." (*Johnson v. City of Oakland*, *supra*, 188 Cal.App.2d at p. 183.) That approach is reflected in a line of cases holding that an erroneous accident location did not defeat substantial compliance with the claim-presentation requirements. In *Johnson v. City of Los Angeles* (1955) 134 Cal.App.2d 600, 601-604, the claim identified the southeast corner of an intersection instead of the southwest corner. In *Parodi v. City and County of San Francisco* (1958) 160 Cal.App.2d 577, 581-584, the Court applied that approach more broadly where the claim identified an intersection approximately 11 blocks from the location described at trial and nevertheless found substantial compliance under the circumstances. In *Johnson v. City of Oakland*, *supra*, 188 Cal.App.2d at pages 182-184, the claim identified 1819 35th Avenue instead of 1819 34th Avenue. In *Mace v. City of Pasadena* (1962) 199 Cal.App.2d 522, 523-526, the claim identified the wrong

intersecting street approximately one block away. In *Rowan v. City and County of San Francisco* (1966) 244 Cal.App.2d 308, 312-313, the claim identified 3350 Scott Street instead of 3358-3360 Scott Street.

Hall v. City of Los Angeles (1941) 19 Cal.2d 198 held that the claim failed to sufficiently designate the place of the accident. (*Id.* at pp. 202-203.) *Johnson v. City of Los Angeles* later characterized *Hall* as a case in which the designation was “so general and indefinite that there was no semblance of compliance with the statute.” (*Johnson v. City of Los Angeles*, *supra*, 134 Cal.App.2d at p. 603.) By contrast, *Johnson* held that an erroneous designation of the southeast rather than southwest corner of an intersection did not defeat substantial compliance. (*Id.* at pp. 603-604.)

In *Hernandez v. City of Stockton* (2023) 90 Cal.App.5th 1222, 1227, the government claim specifically identified an “uplifted sidewalk” as the dangerous condition causing the plaintiff’s fall. The plaintiff later disclosed in deposition that he instead fell into a hole created by an empty tree well. (*Id.* at p. 1228.) The Court held that the empty tree well did not further describe or clarify the alleged uplifted sidewalk, but was an “entirely different description.” (*Id.* at p. 1234.)

Here, the FAC alleges that Plaintiff timely submitted government claims with the public entity defendant. (FAC ¶ 21.) The FAC alleges that on September 12, 2022, at approximately 3:50 a.m., Plaintiff was riding his electric bicycle eastbound on Cole Avenue, made a slight left turn onto Cahuenga Boulevard, and thereafter approached De Longpre Avenue and Cahuenga Boulevard, where his bicycle made contact with a pothole near 6408 De Longpre Avenue, causing him to fall and sustain injuries. (FAC ¶ 6.) The government claim states that Plaintiff was traveling eastbound on Fountain Avenue toward Cahuenga Boulevard and that, as he reached the intersection to make a left turn onto Cahuenga Boulevard, his bicycle “got caught on a pothole,” causing him to lose control and sustain injuries. (RJN, Ex. A at 1.) The claim identifies the location as Cahuenga Boulevard and Fountain Avenue. (*Ibid.*) In response to the claim form’s question asking what act or omission caused the injury, Plaintiff stated, “Multiple potholes.” (*Ibid.*) As compared with the government claim, the FAC therefore changes the approach street from Fountain Avenue to Cole Avenue and the alleged accident location from Fountain Avenue and Cahuenga Boulevard to near De Longpre Avenue and Cahuenga Boulevard. Exhibit H reflects a distance of approximately 700 feet between 6408 De Longpre Avenue

and Cahuenga Boulevard and Fountain Avenue. (RJN, Ex. H.)

The Court finds substantial compliance. The government claim was not so general or indefinite as to provide “no semblance of compliance” with the place requirement. (Johnson v. City of Los Angeles, *supra*, 134 Cal.App.2d at p. 603.) It identified Cahuenga Boulevard and Fountain Avenue and described the occurrence as Plaintiff traveling eastbound on Fountain Avenue, turning left onto Cahuenga Boulevard, and striking a pothole at approximately 3:50 a.m. on September 12, 2022. (RJN, Ex. A at 1.) Although the FAC places the accident near 6408 De Longpre Avenue, approximately 700 feet from Cahuenga Boulevard and Fountain Avenue, Johnson, Parodi, Mace, and Rowan establish that an erroneous location does not necessarily defeat substantial compliance where the claim otherwise sufficiently identifies the occurrence for investigation. Hernandez is distinguishable because the alleged dangerous condition there changed. Here, both the government claim and the FAC identify a pothole as the condition that caused the accident. The discrepancy concerns its location.

Accordingly, the claim substantially complied with Government Code section 910. The demurrer is overruled on this ground.

Sham Pleading

Defendant separately argues that the FAC is a sham pleading because Plaintiff identified Fountain Avenue and Cahuenga Boulevard as the accident location in his government claim, original Complaint, discovery responses, and deposition testimony, but changed the location after Defendant moved for summary judgment. Defendant argues that Plaintiff’s repeated prior statements and the timing of the amendment demonstrate that the change was made to avoid summary judgment rather than to correct a mistake. (Demurrer, pp. 15-17; Reply, pp. 9-10.)

Under the sham pleading doctrine, a plaintiff may not amend a complaint to omit harmful allegations, without explanation, to avoid a demurrer or motion for summary judgment. (Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425-426.) The doctrine likewise permits a Court to disregard facts added in an amended complaint that are inconsistent with prior pleadings unless the inconsistency is satisfactorily explained. (*Ibid.*) The doctrine is not intended to prevent correction of erroneous allegations, but to prevent abuse of process. (*Id.* at p. 426.) In Deveny, the Court

declined to apply the doctrine where the plaintiffs offered a plausible explanation for the amendment and demonstrated that the original pleading resulted from mistake. (Id. at pp. 426-427.)

Here, the original Complaint alleged that the accident occurred at Fountain Avenue and Cahuenga Boulevard. (RJN, Ex. B ¶ 6.) Defendant thereafter moved for summary judgment, arguing that GPS data showed Plaintiff was never at that location. (RJN, Ex. I, pp. 2-3.) The FAC now alleges that the accident occurred near De Longpre Avenue and Cahuenga Boulevard. (FAC ¶ 6.) Plaintiff previously explained that his identification of Fountain Avenue and Cahuenga Boulevard was based on his recollection while injured and disoriented in the dark and that his recollection was later refreshed after reviewing Lime GPS data produced by Defendant. (Jan. 5, 2026 Minute Order, p. 6.) The Court considered Defendant's sham pleading objection and found that explanation "plausible enough to allow the trier of fact to resolve the conflict, rather than barring the amendment at the pleading stage." (Ibid.)

Defendant argues that the explanation is not satisfactory because Plaintiff repeatedly identified Fountain Avenue and Cahuenga Boulevard and did not change the location until after Defendant moved for summary judgment. (Reply, pp. 9-10.) Those circumstances bear on the credibility of Plaintiff's explanation, but they do not establish on demurrer that the explanation is a sham. Resolving whether Plaintiff's explanation is true would require the Court to weigh disputed facts, which it may not do on demurrer. (Del E. Webb Corp. v. Structural Materials Co., supra, 123 Cal.App.3d at pp. 604-605.)

The Court therefore finds that the inconsistency has been satisfactorily explained for purposes of the sham pleading doctrine and that the FAC is not a sham pleading. The demurrer is overruled on this ground.

CONCLUSION

Defendant City of Los Angeles's Demurrer to the First Amended Complaint is overruled. Defendant shall answer or otherwise plead to the First Amended Complaint within 10 days. (Cal. Rules of Court, rule 3.1320(j)(1).)